

RESOLUTION OF

PROCEDURE OF WARNING

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on February 18, 2022. The complaint is directed against MAPFRE ESPAÑA COMPAÑÍA DE SEGUROS Y REASEGUROS, S.A. with NIF A28141935 (hereinafter, MAPFRE). The reasons for the complaint are as follows:

Complaint against MAPFRE regarding the use of cookies on its website.

The complainant asserts that cookies are loaded "before being able to manage them, without taking any action" and that, in relation to the use of Google Analytics, international transfers to the U.S. would be occurring.

Along with the complaint, the following is provided:

- Images of the MAPFRE website "Cookie Notice" from the website ***URL.1.
- Printout from the Chrome browser – Settings – Security and Privacy.

On March 18, 2022, the following evidence collected by this Agency was incorporated into the file:

- Printout of a series of screens from the Privacy Policy and Data Processing of the website ***URL.2, which lists the following Google Analytics cookies: _ga, _gid.
- Conducting a test of installed cookies after acceptance, it was verified that the aforementioned Google Analytics cookies were installed.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the accused party for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

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The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was recorded on May 4, 2022, as evidenced by the acknowledgment of receipt in the file.

On June 6, 2022, this Agency received a written response indicating that:

"1. Decision made regarding the complaint

As a result of internal reviews conducted, it has been decided to strengthen the verification and review process prior to the deployment of privacy and cookie policies. Additionally, to continue in the process of implementing the cookie governance model, emphasizing periodic scanning to ensure the correct classification of cookies so that they are reflected in the correct categories, both in the configurator and in the cookie policy.

2. Causes that motivated the incident that led to the complaint.

The forwarding of the complaint indicates that the date of entry into the Agency was February 18, 2022, consisting of three different types of facts:

1. The complainant states that cookies are being installed on the website ***URL.3 before being able to manage them.

In this regard, it should be noted that as of February 2022, the cookie policy on Mapfre.es, as can be verified in the attached Evidence 1, reflects an incorrect distribution of cookies within the categories. This is a consequence of the characteristics of the tool used to classify and manage cookies, and of the review processes of these through periodic scans. Therefore, it is possible that they may be incorrectly assigned to a category in the cookie configurator, or that obsolete cookies have not been

removed, and due to their synchronization with the cookie policy via a script, they appear to be assigned in this way. It should be noted that this does not lead to installation.

In this sense, MAPFRE ESPAÑA is engaged in a "cookie governance" project, as explained in section 3, with the aim of improving their management as evidenced by the following change history:

As of the date of these allegations, MAPFRE has been able to verify, after analyzing the deployed cookies, that no cookie is installed unless the user accepts the chosen selection. Cookies are retained until the user takes the action to save the configuration.

The cookies that are installed in the case of rejecting all, as evidenced below, are strictly necessary.

Regarding the management of cookies carried out by MAPFRE, it should be noted that:

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First, regarding how we provide information to users about the use of cookies and the purposes of data processing, MAPFRE follows the provisions set out in the guide "Guide on the Use of Cookies July 2020" (the Guide). The management of cookies and the need to adapt it both to the LSSI and to data protection regulations has always been present at MAPFRE. For this reason, various actions have been undertaken over time to ensure compliance with the different regulations, as well as with the criteria that have emerged over time.

In the interest of transparency and usability of the web environment, MAPFRE complies with the duty to inform at two levels of detail. The first level is in the cookie banner and the user preference configurator, and the second level is through the privacy policy and the cookie policy.

****First level of information through the cookie banner and the user preference configurator.****

First, in the pop-up (cookie banner) that appears to a user the first time they access the website, including the definition and description of the generic function of the cookies from www.mapfre.es:

"MAPFRE ESPAÑA S.A. uses its own and third-party cookies to perform statistical analyses, authenticate the user session, show you useful content, and improve and personalize certain services by analyzing your browsing habits. You can configure these cookies, which may limit your navigation and services on the website. If you accept cookies, you are consenting to the use of cookies on this website. You can accept all cookies by clicking the "Accept" button, or configure or reject their use by clicking on Cookie Settings. If you wish for more information, you can consult our Privacy Policy and Cookie Policy."

Second, by clicking on the active link in the cookie banner "Cookie Settings," the cookie configurator is displayed where the categories of cookies are explained.

- ****Strictly necessary cookies:**** These cookies are used for the website to function and for you to navigate to secure areas. We cannot deactivate them, but if you still want to change them, you can modify them through your browser settings. By configuring them, it is very likely that the website will not function, as they are necessary cookies.

- ****Analytical cookies:**** These are used to collect statistics on user activity. Among other things, they analyze the number of users visiting the website, the number of pages visited, as well as user activity on the website and its frequency of use. The information collected is always anonymous in such a way that no link can be established between it and the individual to whom it refers.

- ****Functional cookies:**** These cookies enhance functionality, such as videos and online chats. They may be set by us or by external providers whose services are integrated into our pages. If you do not allow these cookies, some or all of these features may not work properly.

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An example would be multimedia player cookies, which are used to store technical data with a view to reproducing video or audio content. Additionally, thanks to them, the content is tailored to your usage.

They allow for the retention of information to personalize your experience.

- Marketing cookies: These cookies enable the personalization and adaptation of the advertising communications displayed, according to your preferences. Furthermore, they allow for the customization of some general options on the website, thanks to browsing data. They are also used to integrate social networks into our site, allowing the user to share content of interest on social media. Thirdly, the configurator includes links that display more specific information, so that the user can consult in each category of cookies which are first-party and which are third-party. Third-party cookies are identified by their name or by the brand with which they are publicly identified.

Second level of information:

Through the cookie policy, which synchronizes the classification of cookies in the configurator with the reported categories via a script from the configurator, and through the privacy policy included within the configurator's pop-up. This information is also available at all times in the footer of the website. In the cookie policy, the user is informed about how to prevent the use of third-party cookies once accepted by the user, providing information about the tools provided by the browser, and the third parties, and if they later wish to delete them, they must do so from their own browser or the system enabled by the third parties for that purpose.

The privacy policy informs that those treatments related to the management purposes of cookies and their legal basis.

Secondly, regarding how we provide the user with mechanisms to reject or withdraw consent for their use. The user, prior to the installation of cookies in their browser, has all the necessary information available in layers to make the decision on which to select or reject.

Thus, being aware of the consequences of accepting or denying the installation of cookies as stated, they can decide what action to take. Likewise, at any time, they can withdraw the consent granted by accessing the link to the cookie configurator located in the footer of the website. The action that the user must take is a clear affirmative action for the consent to be considered validly granted.

These requirements for obtaining consent are technically materialized in the following way:

At the first level, the user can accept all cookies by pressing the "Accept" button, or configure or reject their use by clicking on Cookie Settings.

At the second level, within the cookie settings, they can:

- Accept or reject all

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- Accept by categories of cookies by moving the cursor and saving preferences. Until the user performs any of the above actions, all cookies that are not strictly necessary remain deactivated, and those that have been selected will be installed in their browser as they navigate the web domain and subdomains based on the requested service.

2. The claimant states that, on the privacy page, the method of contact for exercising rights is limited to a postal address, without providing an email address.

As a result of the update of privacy policies, the privacy policy included in this Evidence 2 was available for months.

The last change made to the text was on 26/03/2021. The evidence of the evolution of changes:

The latest available version ***URL.2 includes the email address, which corrects the error under the following wording:

The aforementioned rights may be exercised directly by the data subject or through a legal or voluntary representative, via written communication addressed to the Corporate Office of Privacy and Data Protection at Carretera de Pozuelo, 52, 28222 Majadahonda, Madrid or by writing to ***URL.1.

Attached as document. Evidence 3

The error was available for a brief time until it was reviewed in March.

It should be added that the email at ***URL.2 is not the only electronic contact method available to the

interested party, but also:

- DPD mailbox included at the beginning of the policy.
- As well as other channels available in the Client Area.

3. The claimant states that personal data would be transferred to the United States through the services of Google Analytics and Google Ads.

In this section, we consider it important to point out again that within the cookie management government project, periodic scans may classify non-strictly necessary cookies into a category that does not correspond to them, but this does not imply that they are being installed. Therefore, those cookies from Google Analytics and Google Ads are only installed with consent once the user, after reading the privacy policy and the cookie policy, decides to accept them.

Consequently, only those cookies that have been consented to are sent to Google Analytics after an anonymization process, where the IP anonymization function applies IP masking so that Google Analytics uses only a part of a collected IP address, instead of the full address.

The anonymization method is performed on the variable "aip," which, if it has the value "1" in the call, means that anonymization is active. Here it is documented:

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[https://developers.google.com/analytics/devguides/collection/protocol/v1/parameters?](https://developers.google.com/analytics/devguides/collection/protocol/v1/parameters?hl=en#aip)

[hl=en#aip](https://developers.google.com/analytics/devguides/collection/protocol/v1/parameters?hl=en#aip)

On the other hand, regarding the migration actions to Google Analytics 4 identified in 2021, a corporate plan was outlined to complete the migration that all entities of the MAPFRE Group are carrying out by 2022. Evidence 4 attached shows the action plan presented in May 2021 with the actions to be taken to improve analytics and the migration to Google Analytics 4.

One of the accelerators of the implementation and improvement plan comes from the change of technological platform for the creation and generation of commercial sites, such as mapfre.es. All portals generated for all entities are launched with a standard version of Google Analytics 4, providing the different entities the opportunity to customize and enhance this version based on their needs. This is the case of mapfre.es, whose migration date is set for April 7, 2022, being one of the last portals to migrate due to its size.

For those cookies that are part of the migration to version 4 of Google Analytics, it is not necessary to anonymize IPs, as these are neither recorded nor stored. In this version, IP addresses are used at the time of collection to determine location information (country, city, latitude, and longitude of the city) and are then discarded before the data is recorded in data centers or servers.

Regarding Google Ads, when using the tags provided by Google Analytics, as they are anonymized, they are under the same protection. The cookies _gac and _gcl store information about campaigns to provide Google Ads with a more reliable way to measure customer interactions with their business. Analytics records campaign information in the cookies _gac and _gcl when a user opens a page on their website through a URL that uses Google Ads automatic tagging.

2. Measures adopted to adapt your "Privacy Policy."

The validation of the controls included in the compliance guide of the duty of information from the AEPD and the report "Report on Privacy Policies on the Internet Adaptation to the GDPR in MAPFRE" has been reinforced within the process of reviewing the upload of the privacy policy. There is a firm commitment to the protection of personal data.

To address the requirements established by the European Data Protection Regulation, a Corporate Working Group was established in July 2016 to adapt MAPFRE, in an early, transversal, and proactive manner, to the new demands. This Corporate Working Group defined, among other lines, the various projects and lines of activity that must be developed to comply with the new Regulation, including,

among others:

- Privacy Texts Catalog: Identification, review, and, where appropriate, coding of the texts that must be modified or created due to the adaptation to the GDPR.

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Updated European Data Protection Regulation (clauses, privacy policies, messages...) ensuring that they are homogeneous and serve as models within the MAPFRE group.

- Duty of Information: Analyze the requirements regarding the information to be provided to data subjects, as well as the mechanisms that will be used to ensure the duty of information. Review the texts and informative clauses to data subjects related to processing, so that they comply with the required information and follow the criteria of the regulation: concise, transparent, intelligible, and easily accessible information, using clear and simple language.

- Management of Consent: Ensure that consent management for processing is carried out in accordance with the new requirements.

In this regard, the Working Group developed and approved the first versions of the following linked documents:

- July 2017

- February 2018, both the privacy policy and the cookie policy.

With the entry into force in May 2018, this Working Group remained active, becoming the Corporate Privacy and Data Protection Committee. This Committee meets biannually to monitor various pronouncements/legislative updates, and extraordinary sessions are convened to address specific relevant aspects.

MAPFRE has a regulatory observatory and analysis of the multiple pronouncements by regulators in the countries where it is present, with the aim of ensuring that, from the design stage, all processes comply at all times with applicable privacy and data protection regulations.

In this regard, related to Cookie Management, specific Working Groups were established to analyze and define the criteria and lines of action to be undertaken:

- November 2019. Following the publication of the AEPD Cookie Guide, work was done on the analysis, from which adaptation lines were established. Evidence is shown of the presentation held in January where the analysis carried out was reported and the necessary actions to comply with the guide were identified.

- July 2020. Following the publication of the AEPD Guide on the Use of Cookies, work was done on the analysis, from which lines were established to comply before October 31, 2020, a three-month transitional period to implement the necessary changes in accordance with the criteria introduced regarding user consent for the use of cookies.

To carry out compliance monitoring of the implemented texts, in addition to periodic reviews, various audits of compliance with the GDPR have been conducted, specifically reviewing the issue of privacy and cookie policies.

3. The measures adopted to adapt the use of cookies. MAPFRE, due to the technological particularity of its web resources, has decided to create a Cookie Governance Model that consists of three lines of work:

- Cookie governance model, integrating various areas of the company (Privacy, digital business, web development)

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It is based on a structured work dynamic that allows for the minimization of possible errors or problems arising from the use of OneTrust. Good practices are established to help detect when changes in the

configuration of OneTrust are necessary.

1. In the event of any new site or development on the web portals: migrations, implementation of new analytical tools, changes in an application...

2. Periodic reviews to prevent implementation errors.

3. Detection of incidents: errors in web uploads.

After exporting the results of the scan, the cookies found and the categorizations assigned by OneTrust will be reviewed. Sometimes these categories need to be changed or assigned manually since the tool is unable to understand who or what creates the cookies. In these cases, a categorization proposal document and descriptions must be created and approved by legal.

Prioritize by domains and subdomains, creation of domains. Evidence 5

Outsourcing the cookie management service.

The decision has been made to seek support in the implementation of the cookie management governance model through an externally supervised service with the aim of having proactive and continuous monitoring. Evidence 6

Migration to G4: Implementation project.

As a result of the global corporate action plan, the migration to Google Analytics 4 has begun in MAPFRE ESPAÑA, as planned in 2021. In addition to improvements in web analytics functionalities, the basis of Google Analytics 4 is privacy. When collecting data, Google Analytics 4 does not record or store IP addresses. The IP addresses collected from users in the EU are removed before being registered on EU domains and servers. The lines to execute the migration include:

- Adaptation to the new GA4 taxonomy of all Mapfre ES assets
- In coordination with IT, include data layer in all possible assets
- GA adjustments (DataStreams, Subproperties...)
- Adaptation of reports to GA4 according to priority.

THIRD: On May 19, 2022, in accordance with Article 65 of the LOPDGDD, the complaint submitted by the claimant was admitted for processing.

FOURTH: On May 28, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate a warning procedure against the respondent for the alleged infringement of Article 44 of the GDPR, classified under Article 83.5 of the GDPR.

FIFTH: The notification of the aforementioned initiation agreement, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was received on May 29, 2024, as evidenced by the acknowledgment of receipt in the file.

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SIXTH: On May 30, 2024, MAPFRE submitted a document requesting an extension of the deadline to present allegations.

SEVENTH: On May 31, 2024, the instructing body of the procedure agreed to extend the requested deadline by up to five days, in accordance with the provisions of Article 32.1 of the LPACAP.

The aforementioned agreement was notified to MAPFRE on May 31, 2024, as evidenced by the acknowledgment of receipt in the file.

EIGHTH: On June 19, 2024, a document of allegations from the respondent was received, which, in summary, includes the following considerations:

- MAPFRE claims to have corrected what was stated by the claimant in the complaint regarding the fact that on the website ***URL.3 "cookies are loaded before they can be managed, without taking any action."
- In the contract in force during the period of the complaint, Google Ireland Limited is the entity providing Google Analytics services.
- The cookies that had been consented to were sent to Google applying a process of anonymization on

the user's IP address.

- Since September 2023, Google LLC has adhered to the EU-U.S. Data Privacy Framework.
- As of June 6, 2022, MAPFRE was in the process of migrating to Google Analytics 4.
- According to MAPFRE, a Corporate Privacy and Data Protection Committee has been created. This is a specific operational committee for direction and control in the field of privacy and data protection, supporting the DPO in the development of its functions.
- That, by virtue of the provisions of Article 67.2 of the LOPDyGDD in connection with Article 122.4 of the Regulation for the development of the LOPD (RLOPD), approved by Royal Decree 1720/2007, of December 21, in force in all that does not contradict, oppose, or prove incompatible with the provisions of the GDPR and the LOPDGDD, the prior actions carried out by this Agency within the framework of the present warning procedure must be understood as expired.

In view of all that has been acted upon, the Spanish Agency for Data Protection considers the following facts proven in the present procedure,

PROVEN FACTS

FIRST: On March 18, 2022, as a result of the analysis of the complaint filed by the claimant against MAPFRE, this Agency confirms that

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The Privacy Policy and Data Processing of the website ***URL.2 includes the following cookies from Google Analytics: _ga, _gid (page 19 of the file).

On the same date, the following action is taken: Acceptance of the cookies from the website ***URL.1 through the Chrome browser. The image included in the file shows that the cookies _ga, _gid have been installed (page 44 of the file).

SECOND: On June 6, 2022, in response to the transfer of the complaint, MAPFRE acknowledges that it has introduced the code for the Google Analytics tool on its website: "...therefore, those cookies from Google Analytics and Google Ads are only installed with consent once the user, after reading the privacy policy and the cookie policy, decides to accept them."

THIRD: On September 2, 2020, the plenary of the European Data Protection Committee decided to create a working group (hereinafter, working group TF101) to ensure a coherent approach among European data authorities regarding the management of the 101 complaints from NOYB related to the use of Google Analytics and the possible transfers of data to the U.S., in the context of the ruling of the CJEU Schrems II.

FOURTH: In the document dated April 9, 2021, sent by GOOGLE LLC to the Austrian data protection authority, which shares it with the other authorities through the working group TF101 regarding NOYB complaints in the context of the CJEU Schrems II ruling, the following information and statements are included (from its unofficial translation from English):

(...).

FIFTH: In the model of the Adhesion Contract to the services of GOOGLE (page 145 and following of the file), titled "Terms of Data Processing of Google Ads"

(<https://privacy.google.com/businesses/processorterms/>), in its version of September 21, 2022, it stated that (unofficial translation):

"Terms of Data Processing of Google Ads

Google and the counterparty accepting these Conditions (the "Client") have entered into a contract for the provision of the Services of the data processor (with its specific amendments, the "Contract")

These Data Processing Conditions for Google Ads (the "Data Processing Conditions") are subscribed by Google and the Client and complement the Contract.

[...]

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If you accept these Data Processing Terms on behalf of the Client, you warrant that a) you have full legal authority for these Data Processing Terms to be binding on the Client, b) you have read and understand these Data Processing Terms, and c) you accept them on behalf of the Client. If you do not have the legal authority for these Data Processing Terms to be binding on the Client, do not accept them.

Introduction

These Data Processing Terms reflect the agreement between the parties regarding the terms governing the processing of certain data in relation to European Data Protection Legislation and certain Non-European Data Protection Legislation.

Definitions and interpretation

[...]

“Google Entity” refers to Google LLC (formerly known as Google Inc.), Google Ireland Limited, or any other entity that, directly or indirectly, controls Google LLC, is controlled by Google LLC, or is under the same control as Google LLC.

“Google”: refers to the Google Entity that is a party to the Contract.

“European Data Protection Legislation” refers, as applicable, to a) the GDPR and/or b) the FDPA of Switzerland.

[...]

“SCCs” refers to the Standard Contractual Clauses of the Client and/or the Standard Contractual Clauses (Data Processor of the EU to the Data Processor, Exporter of Google), as applicable.

[...]

“SCCs (Data Processor to Data Processor, Exporter of Google)” refers to the terms included in ***URL.4.

[...]

“Sub-processors” refers to third parties authorized under these Data Processing Terms to have logical access to the Client's Personal Data and process it for the purpose of providing part of the Services of the Data Processor and any related technical assistance.

[...]

5. Data Processing

5.1 Roles and compliance; authorization.

5.1.1 Responsibilities of the Data Processor and the Data Controller.

The parties acknowledge and agree to the following:

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(a) Appendix 1 describes the issue and details of the processing of the Client's Personal Data.

(b) Google is a data processor of the Client's personal data;

(c) The Client is a data controller or a data processor, as applicable, of the Client's Personal Data; and

(d) Each party shall comply with the obligations that correspond to it under the Applicable Data Protection Legislation regarding the processing of the Client's Personal Data.

[...]

5.2. Client Instructions. By subscribing to these Data Processing Terms, the Client indicates to Google that it shall process the Client's Personal Data solely in accordance with applicable law: a) to provide the Data Processor Services and any related technical assistance, b) as specified in more detail through the Client's use of the Data Processor Services (including the configuration and other features of the Data Processor Services) and any related technical assistance, c) as documented through the Agreement (including these Data Processing Terms), and d) as documented in more detail in other instructions provided in writing by the Client and acknowledged by Google as instructions constitutive

for the purposes of these Data Processing Terms (collectively, the “Instructions”).

5.3 Compliance with Instructions by Google. Google shall comply with the Instructions unless prohibited by Applicable Laws or such Applicable Laws require different processing.

[...]

10. Data Transfers

10.1 Data Storage and Processing Facilities. In accordance with this section 10 (Data Transfers), Google may process the Client's Personal Data in any country where Google or any of its Sub-processors has facilities.

10.2 Restricted European Transfers. The parties acknowledge that European Data Protection Legislation does not require SCCs or an Alternative Transfer Solution to process the Client's Personal Data in an Adequate Country or to transfer it to such a country. If the Client's Personal Data is transferred to any other country and such transfers are subject to European Data Protection Legislation (“Restricted European Transfers”), then:

If Google adopts an Alternative Transfer Solution for any Restricted European Transfer, Google will inform the Client of the relevant solution and ensure that such Restricted European Transfers are carried out in accordance with such Solution and/or If Google has not adopted or informed

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to the Client that it will no longer adopt any Alternative Transfer Solution for any Restricted European Transfer, in which case:

If Google's address is in an Adequate Country:

The SCCs of the Data Processor to the Data Processor (Google Exporter) will apply with respect to all Restricted European Transfers from Google to the Sub-Processors.

(B) Furthermore, if the Client's address is not in an Adequate Country, the SCCs (Data Processor to Data Controller) will apply with respect to the Restricted European Transfers between Google and the Client, regardless of whether the Client is a controller and/or a processor of data or

(ii) If Google's address is not in an Adequate Country, the SCCs of the Data Controller to the Data Processor and/or the SCCs (Data Processor to Data Processor) will apply, depending on whether the Client is a data controller and/or a data processor, with respect to the Restricted European Transfers between the Client and Google.

10.3 Complementary measures and information. Google will provide the Client with relevant information regarding the Restricted European Transfers, including information on complementary measures to protect the Client's Personal Data, as described in section 7.5.1 (Security Documentation Reviews), in Appendix 2 (Security Measures), and in other materials related to the nature of the Data Processor Services and the processing of the Client's Personal Data (e.g., help center articles).

10.4 Termination. If the Client concludes, based on its use or intended use of the Data Processor Services, that the Alternative Transfer Solution and/or the SCCs, as applicable, do not provide adequate protection for the Client's Personal Data, the Client may immediately terminate the Agreement for convenience by providing written notice to Google.

10.5 Data center information. Information about the locations of Google's data centers is available at ***URL.5.

11. Sub-Processors.

11.1 Consent for engaging a Sub-Processor. The Client specifically authorizes the engagement as Sub-Processors of the entities listed, as of the Effective Date of the Terms, at the URL specified in section 11.2 (Information about Sub-Processors). Furthermore, and without prejudice to what is stipulated in section 11.4 (Opportunity to object to changes of the Sub-Processor), the Client generally authorizes the engagement of any other third party as a Sub-Processor (“New Sub-Processors”).

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[...]" (the underlining is ours).

SIXTH: In the description of Google Analytics, available at the url ***URL.5, it was stated, among other information, that the cookies _ga and _gid were used to distinguish users and that the parameter "sr" referred to screen resolution (page 136 and following of the file).

SEVENTH: According to the response to question 4 (ii) of the document dated April 9, 2021, from GOOGLE LLC in the file, the owner of the website that has implemented the Google Analytics code on that website can choose from multiple retention periods ranging from 2 months to 50 months from the time the data was collected.

EIGHTH: According to the diligence dated September 27, 2024, in the file, as of January 18, 2021, the url ***URL.6 stated (unofficial translation, original in English):

"[...]"

Requests from U.S. government agencies in cases involving national security

In investigations related to national security, the U.S. government may use a National Security Letter (NSL) or one of the authorizations granted under the Foreign Intelligence Surveillance Act (FISA) to compel Google to provide user information.

An NSL does not require judicial authorization and can only be used to compel us to provide limited subscriber information.

FISA orders and authorizations can be used to compel electronic surveillance and the disclosure of stored data, including the content of services such as Gmail, Drive, and Photos."

[...]" (unofficial translation, original in English)

NINTH: According to the diligence dated September 27, 2024, in the file, as of January 26, 2022, the url ***URL.7 stated (unofficial translation, original in English):

"[...]"

Basics about personally identifiable information in Google contracts and policies.

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In many contracts, terms of service, and policies of Google's advertising and measurement products, reference is made to "personally identifiable information" (PII). This is a categorization of data that differs from what the General Data Protection Regulation (GDPR) considers "personal data."

Please note that, although Google does not identify certain data as personally identifiable information, it is possible that the GDPR may classify it as such or that such data may be considered personal information under the California Consumer Privacy Act (CCPA), and may be subject to those laws.

[...]"

Google considers "personally identifiable information" to be information that can be used alone to identify or locate a person accurately, or to contact them directly. This includes, among other data, the following:

- Email addresses
- Postal addresses
- Phone numbers
- Precise locations (e.g., GPS coordinates, except in the cases mentioned below)
- Full names (first and last names) or usernames.

[...]"

Among other things, Google does not consider the following data to be personally identifiable information:

- Pseudonymous cookie IDs
- Pseudonymous advertising IDs

- IP addresses
- Other pseudonymous end-user identifiers

For example, if an IP address is sent with an ad request (something that happens with almost all ad requests as a result of Internet protocols), that submission will not violate any prohibition related to sending personally identifiable information to Google.

Please note that, although Google does not identify certain data as personally identifiable information, it is possible that the GDPR, the CCPA, or other privacy laws may consider them personal data or personal information.

[...]

TENTH: As stated in the diligence dated September 27, 2024, in the file, at the URL ***URL.8, Google has published since 2009 the number of requests for information about users in the U.S. related to FISA (Foreign Intelligence Surveillance Act) and NSL (National Security Letters).

LEGAL GROUNDS

I

Competence and Procedure

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Data Protection Agency will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

Considering the nature of the facts that have led to the proceedings and the concurrent circumstances, this warning procedure is being followed in accordance with the provisions of Article 64.3 of the LOPDGDD.

II

Preliminary Issues

Article 4.2 of the GDPR defines "processing" as:

"any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or any other form of enabling access, alignment, combination, restriction, erasure or destruction."

For its part, Article 4.7 of the GDPR defines the "data controller" or "controller" as:

"the natural or legal person, public authority, service, or other body that, alone or jointly with others, determines the purposes and means of the processing; where the law of the Union or of the Member States determines the purposes and means of processing, the controller or the specific criteria for its designation may be provided for by the law of the Union or of the Member States."

In this case, according to the provisions of Articles 4.1 and 4.2 of the GDPR, there is evidence of the processing of personal data, since MAPFRE collects and processes, through the Google Analytics service, among other things, the following personal data of natural persons: unique user identifiers (_ga and _gid), the IP address, as well as other data associated with the browser and the browsing itself, among other processes.

MAPFRE carries out this activity in its capacity as the data controller, as it is the one who determines the purposes and means of such activity, by virtue of Article 4.7 of the GDPR.

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On its part, Article 44 of the GDPR establishes the general principle regarding the transfer of personal data to third countries.

III

Response to the Allegations

Below, a response is provided to the allegations presented by the entity being claimed against, in the order in which they are formulated in their writing:

“1. Regarding the possible installation of analytical cookies.”

MAPFRE claims to have corrected the statement made by the claimant in the complaint regarding the fact that on the website ***URL.3 “cookies are loaded before they can be managed, without any action being taken,” reinforcing the process of implementing the cookie governance model, emphasizing periodic scanning to ensure the correct classification of cookies so that they are reflected in the correct categories, both in the configurator and in the cookie policy.

In response to this allegation, it should be noted that the issue raised by MAPFRE does not undermine its responsibility regarding the facts that led to the initiation of this procedure. The management of the installation of cookies is independent of whether there is a cause that legitimizes the international transfer of data. If MAPFRE intended to legitimize the international transfer of data by obtaining the consent of the claimant, it should have obtained that consent specifically for the consent obtained for the installation of cookies. Furthermore, it should have informed about the risks that data transfers to the U.S. posed for the personal data of the claimant.

For all the above reasons, this allegation is dismissed.

“2. Regarding possible international data transfers.”

“First.- Situation of MAPFRE ESPAÑA prior to the EU-U.S. Data Privacy Framework”

“1.- Contract with Google Ireland Limited”

In the contract in force during the period of the complaint, Google Ireland Limited is the entity that provides Google Analytics services.

In response to this allegation, it should be noted that MAPFRE's responsibility for the commission of the infringement that motivates this procedure is attributable to the extent that the international transfer of data violates the rights of the claimant and of users visiting the MAPFRE website, as it does not guarantee an equivalent level of protection to that established in the GDPR, and the effectiveness of the obligations established by this regulation must be ensured.

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Recital 81 of the GDPR clarifies that the data processor must provide sufficient guarantees regarding specialized knowledge, reliability, and resources, with a view to implementing technical and organizational measures that meet the requirements of the Regulation, including the security of processing.

On September 27, 2021, GOOGLE substantially modified the “Conditions for the processing of Google Ads data,” as can be verified on the website ***URL.9.

In section 10.3 of these “Conditions,” the Client contracting the service assumes the so-called “Restricted Transfers”:

“10.3 Restricted Transfers. If the processing of the Client's Personal Data involves any type of transfer that is not a Permitted Transfer and those transfers are subject to European Data Protection Legislation (“Restricted Transfers”), then:

(a) If Google announces that it has adopted an Alternative Transfer Solution for any Restricted

Transfer, then it will ensure that such Restricted Transfers are carried out in accordance with that Alternative Transfer Solution.

(b) If Google has not adopted any Alternative Transfer Solution for any Restricted Transfer, then

(i) If Google's address is in an Adequate Country:

(...)

(ii) If Google's address is not in an Adequate Country:

(A) The SCCs (EU Data Controller to Data Processor) and/or the SCCs (EU Data Processor to Data

Processor) will apply, depending on whether the Client is a data controller and/or a data processor, regarding the Restricted Transfers between the Client and Google that are subject to the EU GDPR and/or the Swiss FDPA.

(...)”

The SCCs applicable to the present case are the “SCCs (Google Ads and Measurement: Standard Contractual Clauses (Module 3: Processor to Processor),” which can be consulted on the following website: ***URL.10, where GOOGLE IRELAND is attributed the status of exporter, as MAPFRE refers to in its allegations.

However, MAPFRE, by introducing the code of the Google Analytics tool on its website ***URL.3 based on a corporate decision, was aware that personal data is transferred to Google LLC, based in the United States, either directly by MAPFRE or by Google Ireland.

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While it is true that MAPFRE does not decide where personal data is stored by Google LLC, from the moment it contracts the services of its Google Analytics tool, it is understood that it agrees with point 10 of the "Google Ads Data Processing Terms." Therefore, the data controller has agreed that Google may store and process personal data of the client (i.e., personal data of the claimant and any user visiting the relevant website) in any country where Google or any of its data processing sub-processors maintain facilities, including the U.S., as stated by Google LLC itself in the document dated April 9, 2021. Thus, the actions of Google LLC are in accordance with the stipulations and, on behalf of MAPFRE, carry out the processing of the personal data necessary for the proper provision of the service.

Consequently, regardless of the fact that the current SCCs (Google Ads and Measurement: Standard Contractual Clauses (Module 3: Processor to Processor) designate Google Ireland as the data exporter, MAPFRE, as the data controller, assumes, along with the other conditions of the contracting of Google LLC's services, the agreements related to data processing and the SCCs that allow the data to be transferred to Google LLC, based in the United States. Therefore, MAPFRE is responsible for the international data transfer that occurs as a result of the service provided by Google LLC.

This criterion is shared by the European Data Protection Board (EDPB), which, in compliance with the objective of ensuring the consistent application of the General Data Protection Regulation (as attributed to it by Article 70 of the GDPR), adopted the following guidelines: “Guidelines 05/2021 on the Interplay between the application of Article 3 and the provisions on international transfers as per Chapter V of the GDPR” (unofficial translation: “Directrices 05/2021 sobre la interacción entre la aplicación del artículo 3 y las disposiciones sobre transferencias internacionales con arreglo al capítulo V del RGPD,” in which section 19 states the following (official text in English with added underline):

“It is also important to note that Article 44 of the GDPR clearly provides that a transfer can be carried out not only by the data controller but also by the data processor. Therefore, there will be a transfer situation when a data processor (either under Article 3, paragraph 1, or under Article 3, paragraph 2, for a specific processing, as explained above) sends data to another data processor or even to a data controller in a third country following instructions from its data controller. In these cases, the data processor acts as a data exporter on behalf of the data controller and must ensure that the provisions of Chapter V are complied with for the transfer in question according to the instructions of the data controller, including the use of an appropriate transfer tool. Considering that the transfer is a processing activity carried out on behalf of the data controller, the latter is also responsible and could be liable under Chapter V, and must also ensure that the data processor provides sufficient guarantees under Article 28.”

In conclusion, MAPFRE can be attributed the status of data controller in the sense of Article 4.7 of the GDPR, as it is the one managing the website.

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“www.mapfre.es”, determining the means and purposes of the collection and processing of the data obtained as a result of the integration of Google Analytics into its website, in such a way that it is responsible for ensuring that the processing is in accordance with the requirements of the GDPR, and must guarantee the protection of the rights of the data subject in international data transfers, in accordance with the provisions of Article 44 and subsequent articles of the GDPR.

For all the above reasons, this allegation is dismissed.

“2.- Anonymization of the IP in its transmission to Google Universal Analytics”

The cookies that had been consented to were sent to Google applying a process of anonymization on the user's IP address.

In response to this allegation, it should be noted that MAPFRE has not demonstrated in any way that the IPs are anonymized within the territory of the European Union. There is no technical evidence nor is there any proof of the claim that the anonymization of the IP takes place within the territory of the European Union, as MAPFRE itself states: “...it should be carried out immediately after its collection by Google Ireland” (the underlining is ours).

Therefore, any IP address can be transmitted to the United States and anonymized only in a second step after its export. There, from a technical point of view, there is the possibility of accessing the full IP address before its anonymization.

Furthermore, it should be noted that the measure is optional and not applicable to all transfers.

In addition to the IP, as developed in the Legal Basis IV of this resolution, in its point 2, “On the qualification of the data subject to processing as personal data,” MAPFRE carries out international transfers of other personal data through Google Analytics.

For all the above reasons, this allegation is dismissed.

“Second. - Situation of MAPFRE ESPAÑA as of the date of response to the warning.”

“1.- Google’s adherence to the EU-US Data Privacy Framework since September 2023.”

Since September 2023, Google LLC has been adhering to the EU-US Data Privacy Framework.

In response to the allegation regarding the new legal framework of the United States and Google LLC's adherence to the “EU-US Data Privacy Framework,” for the purposes of determining liability for the commission of the infringement, the current legal framework is not applicable, but rather the legal regime in force at the time of the events subject to the complaint, particularly as established by the CJEU in the judgment in case C-311/18 (Schrems II), which declared invalid the Commission's Implementing Decision (EU) 2016/1250 of July 12, 2016, on the adequacy of the protection provided by the EU-US Privacy Shield.

For all the above reasons, this allegation is dismissed.

“2.- Migration to Google Analytics 4 (GA4)”

MAPFRE was in the process of migrating to Google Analytics 4, in which IPs are no longer recorded and stored.

In response to this allegation, it should be noted that the collection of the IP by itself constitutes processing of personal data of the data subjects, regardless of its subsequent anonymization. For example, in Google Analytics 4, according to “Privacy and Data in the EU” from Google (***URL.11), “...IP address data is used solely to obtain geolocation data and is discarded immediately,” so information that can be provided by the IP is indeed used before anonymization.

Additionally, the “Google Ads Data Processing Terms” are maintained, according to which the data controller agrees with Google that it may store and process personal data of the client in any country where Google or any of its data subprocessors maintain facilities. When this information is collected, it is transmitted to the Google Analytics servers. And, according to the document from Google LLC dated April 9, 2021, in the last paragraph in response to question 8, Google states that all data collected through Google Analytics is hosted in the United States.

For all the above reasons, this allegation is dismissed.

“Third.- MAPFRE ESPAÑA has a Cookie Governance and Compliance.”

According to MAPFRE, a Corporate Privacy and Data Protection Committee has been created. This is a specific operational committee for the direction and control in the field of privacy and data protection, supporting the DPO in the development of its functions. Furthermore, pursuant to the provisions of Article 67.2 of the LOPDGDD in connection with Article 122.4 of the Regulation for the development of the LOPD (RLOPD), approved by Royal Decree 1720/2007, of December 21, in force in all that does not contradict, oppose or prove incompatible with the provisions of the GDPR and the LOPDGDD, the prior actions carried out by that Agency within the framework of this warning procedure must be understood as expired.

- MAPFRE has created a Corporate Privacy and Data Protection Committee.

However, this Committee, which has existed since 2016, has not taken into account regarding the

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Regarding the treatment in question, the doctrine established by the CJEU in case C-311/18 (Schrems II), which declared the Commission's Implementing Decision (EU) 2016/1250 of July 12, 2016, on the adequacy of the protection conferred by the EU-U.S. Privacy Shield invalid, is relevant. According to GOOGLE LLC's response dated April 9, 2021, as a provider of electronic communications services within the meaning of subsection (b) of point 4 of Article 1881 of Title 50 of the United States Code, it is subject to surveillance by U.S. intelligence services in accordance with subsection (a) of Article 1881 of Title 50 of the United States Code ("FISA 702"). Therefore, international data transfers to Google Analytics servers violated the applicable regulatory framework according to the CJEU ruling in case C-311/18.

Regarding the standard contractual clauses on which Google bases the international transfer of data to the U.S., the CJEU considered that the contractual nature of these clauses implied that they could not be binding for the authorities of third countries. In particular, the CJEU stated: "...Therefore, while there are situations in which, depending on the legislation and practices in force in the third country in question, the recipient of such a transfer is able to ensure the necessary protection of the data solely on the basis of standard contractual clauses for data protection, there are others in which the content of such standard clauses may not constitute a sufficient means to ensure, in practice, the effective protection of the personal data transferred to the third country in question. This is particularly the case when the legislation of that third country allows its public authorities to interfere with the rights of the data subjects to whom the data refers" (C-311/18, paragraph 126, emphasis added).

- Expiration of preliminary investigation proceedings.

Regarding the expiration of the investigation proceedings, in response to this allegation, it should be noted that, in this case, after the admission of the complaint, no preliminary investigation proceedings have been carried out, so the twelve-month duration limit for such proceedings established by Article 67.2 of the LOPDGDD does not apply, according to the wording of that article in force at the time the complaint was admitted. The period established by Article 67.2 of the LOPDGDD is the maximum period within which the initiation agreement must be issued, only in the event that the opening of preliminary investigation proceedings has been agreed upon, and this time limit cannot be applied, as MAPFRE intends, even if those proceedings have not been agreed upon.

After the admission of the complaint, considering that it was not deemed necessary to conduct preliminary investigation proceedings, the only time limit that we must apply is the three-year statute of limitations provided for in Article 72.1.I) of the LOPDGDD for very serious infringements, as was established in the initiation agreement. Taking into account the absence of an adequacy decision with the U.S. (following the CJEU ruling C-311/18) between July 16, 2020, and July 10, 2023, the facts referred to in the complaint remained until at least this last date, which would be the start date of the statute of limitations. Therefore, as of the start date of the present procedure, the infringement had not expired.

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For all the above reasons, the present allegation is dismissed.

IV

Transfers of personal data to third countries

Article 44 “Transfers of personal data to third countries or international organizations” of the GDPR establishes:

“Personal data that is being processed or is to be processed after its transfer to a third country or international organization may only be transferred if, subject to the other provisions of this Regulation, the controller and the processor comply with the conditions laid down in this chapter, including those relating to further transfers of personal data from the third country or international organization to another third country or another international organization. All provisions of this chapter shall apply in order to ensure that the level of protection of natural persons guaranteed by this Regulation is not undermined.”

Chapter V of the Regulation provides various instruments to ensure a level of protection that is substantially equivalent to that guaranteed in the European Union, in accordance with Article 44 of the Regulation:

- adequacy decisions (Article 45);
- appropriate safeguards (Article 46);

In the absence of an equivalent level of protection, it establishes exceptions for specific situations (Article 49).

1. On the processing of data and the responsibility for processing.

In the document dated April 9, 2021, sent by Google LLC to the Austrian data protection authority, which it shared with the other authorities within the framework of the TF101 working group, it is indicated that Google Analytics operates by including a block of Javascript code on the pages of a website. When a user visits a webpage, this Javascript code refers to a Javascript code that has been previously downloaded to the user's device, which then executes the 'tracking' operation for Google Analytics. The 'tracking' operation sends data about the requested page through various means and sends this information to the Analytics server via a series of parameters attached to a request for a single pixel GIF image sent to the domain google-analytics.com. The data is then processed more extensively and ends up in the reports of the website owner, in this case, that of MAPFRE. The data that Google Analytics collects on behalf of the website owner comes from the following sources:

i. The user's HTTP request.

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An HTTP request contains details such as the browser and the computer making the request, such as the hostname, browser type, 'referer', and language.

ii.

Browser and system information.

iii.

First-party cookies.

Website administrators who integrate the Google Analytics service can send instructions to Google for processing the data collected through Google Analytics. The website administrator can apply different settings, for example, regarding the data retention period. The Google Analytics function also allows website administrators to monitor and maintain the stability of their website, for example, keeping them informed of certain events such as a spike in audience or the fact that there is no traffic at all. Google Analytics also enables website administrators to measure and optimize the effectiveness of advertising

campaigns conducted using other Google tools.

Therefore, Google Analytics collects the user's HTTP query, which contains information about the user's browser and operating system, the "referrer," and the language. Additionally, Google Analytics stores and reads cookies in the user's browser to evaluate the user's session and other information about the query.

Regarding these data transfers, the contract related to the Google Analytics function ("Google Analytics Terms of Service") incorporates an appendix titled "Google Ads Data Processing Terms" (previously named "Google Ads Data Processing Conditions"). This appendix contains standard contractual clauses governing the transfer of personal data to the United States of America under the Google Analytics service. Furthermore, Google has implemented additional legal, organizational, and technical measures to regulate data transfers under the Google Analytics service.

In accordance with point 10 of the "Google Ads Data Processing Terms," the data controller has agreed that Google may store and process personal data of the client (in this case, personal data of the claiming party) in any country where Google or any of its data processors maintain facilities. When this information is collected, it is transmitted to the Google Analytics servers.

Returning to the document sent by Google LLC dated April 9, 2021, in the last paragraph of the response to question 8, Google states that all data collected through Google Analytics is hosted in the United States. Therefore, the data collected on the website "www.mapfre.es" through Google Analytics is transferred to the United States. Such data transmission requires a legal basis in accordance with Article 44 and following of the GDPR.

All these elements show that, when deciding to implement the Google Analytics function on its website, MAPFRE, which manages the website "www.mapfre.es," determined the means and purposes of the collection and processing of the data obtained as a result of the integration of Google Analytics into its website and must be considered the

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data controller in the sense of Article 4.7 of the GDPR.

2. On the qualification of the data subject to processing as personal data

It can be asserted that the data collected under the Google Analytics function and transferred to the United States of America constitutes personal data.

Article 4.1 of the GDPR defines personal data as "any information relating to an identified or identifiable natural person ('the data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more specific factors related to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person." It should be noted that online identifiers, such as IP addresses or information stored in cookies, can commonly be used to identify a user, especially when combined with other similar types of information. This is illustrated in Recital 30 of the GDPR, which states that the assignment of online identifiers such as IP addresses, cookie identifiers to natural persons or their devices can "leave traces that, in particular when combined with unique identifiers and other information received by the servers, can be used to create profiles of natural persons and identify them." In the particular case where the data controller claims not to have the ability to identify the user through the use (alone or combined with other data points) of such identifiers, it would be expected to disclose the specific means deployed to ensure the anonymity of the collected identifiers. Without such details, they cannot be considered anonymous.

Therefore, it is necessary to examine to what extent the implementation of Google Analytics on a website allows the website administrator and Google to identify a data subject (a visitor to the website in question).

When a user visits the website www.mapfre.es, the following data (via JavaScript code) is transmitted from the claimant's browser to the servers of Google LLC (response to question 2 of Google's

document dated April 9, 2021):

- Cookies _ga and _gid (First-party Cookies)
- URL of the visited webpage (parameter dl) and title of the visited webpage (parameter dt)
- IP address
- sr (screen resolution), among other parameters.
- Data about the browser and operating system:
- Unique identifier that identifies the website operator

It should be noted that the CJEU has already stated that IP addresses are personal data (see case C-597-19, paragraph 102 and C-582/14, paragraph 49). The IP address does not lose its nature as personal data simply because the means of identification reside with third parties. Furthermore, the case in question is very

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different, as the IP address can be combined with other elements, as will be described below.

Regarding unique identifiers, when a user visits the website www.mapfre.es, its cookie policy acknowledges the use of Google Analytics, which involves sending the values of the cookies “_ga” and “_gid” to Google LLC, as stated in the reference for Google Analytics cookies.

According to the description of Google Analytics available at the URLs:

***URL.12 and ***URL.13,

the cookies _ga and _gid are used to distinguish users and the parameter “sr” refers to screen resolution.

Visitor identifiers are unique identifiers intended to differentiate individuals (where such differentiation was not possible before), making individuals identifiable. These identifiers can also be combined with other information, such as the address of the visited website, metadata related to the browser and operating system, the time and data related to the website visit, and the IP address. This combination of information further differentiates individuals.

For this reason, when several elements are combined, they can allow for the individual identification of visitors to the webpage “***URL.3”, where Google Analytics is implemented. It is not necessary to know the name or the (physical) address of the visitor, as, according to Recital 26 of the GDPR, such qualification of individuals is sufficient for the visitor to be identifiable.

If the opposite were decided, the scope of the right to data protection, guaranteed by Article 8 of the Charter of Fundamental Rights of the European Union, would be undermined, as it would allow companies to specifically select individuals along with personal information (for example, when visiting a specific website) while denying them any right to protection against such singling out. Such a restrictive opinion that would undermine the level of protection for individuals is also not in line with the jurisprudence of the Court of Justice of the European Union (hereinafter, CJEU), which has repeatedly ruled that the scope of the GDPR must be understood very broadly (see, for example, judgment C-439/19, paragraph 61).

Google LLC states that it has “no intention” of using online identifiers to identify the claimant (or other individuals), as mentioned in the last paragraph of the response to question 13 of the document dated April 9, 2021, and that in fact “they do not do this.” It should be noted that Article 4, paragraph 1, of the GDPR does not require an entity to have a specific intention to identify a person.

According to the clear wording of Article 4, paragraph 1, of the GDPR, the term “personal data” is fulfilled when an entity can (has the possibility to) do so.

Even a more restrictive interpretation of Article 4, paragraph 1, of the GDPR, which in any case would be contrary to the jurisprudence of the CJEU, would understand the definition of “personal data” as applicable to the exposed data. In the event that any visitor to the website ***URL.3 had logged into a Google account at

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At the time of their visit, as can be seen in the statement from Google LLC dated April 9, 2021, the implementation of Google Analytics on a website allows Google to receive information that a specific user of the Google account has visited that website.

In the context of the use of Google Analytics, and depending on certain settings in the configuration of the Google user account (see response to question 9 of the Google document dated April 9, 2021), it allows Google to receive information that a user connected to a Google account has visited a particular website. Therefore, personal data related to this account is collected. For all these reasons, it must be considered that the data in question are personal data in the sense of Article 4.1 of the GDPR.

3.- On the breach of the obligation to regulate the transfer of personal data outside the European Union

In this case, it must be verified whether the export of personal data to the United States of America occurred as stated by the claimant, in the terms established by Article 44 of the GDPR, and, in the event that it did occur, whether the export was carried out with an adequate level of protection in accordance with an adequacy decision under Article 45 of the GDPR, or, failing that, whether any of the safeguards under Article 46 of the GDPR were adopted.

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Adequacy Decisions

In its judgment in case C-311/18 ("Schrems II"), dated July 16, 2020, the CJEU invalidated the Commission's Implementing Decision (EU) 2016/1250 of July 12, 2016, pursuant to Directive 95/46/EC of the European Parliament and of the Council, regarding the adequacy of the protection provided by the "EU-US Privacy Shield," without maintaining its effects on the date of the events subject to the claim.

In the absence of an applicable adequacy decision for the present case, the transfer of the data in question cannot be based on the provisions of Article 45.3 of the GDPR.

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Appropriate Safeguards: Standard Contractual Clauses

Article 46, "Transfers subject to appropriate safeguards," of the GDPR, establishes in its paragraph 1 that "In the absence of a decision under Article 45(3), the controller or processor may only transfer personal data to a third country or international organization if it has provided appropriate safeguards and on condition that the data subjects have enforceable rights and effective legal remedies."

Article 46, paragraph 2, of the GDPR provides that "The appropriate safeguards referred to in paragraph 1 may be provided, without requiring any specific authorization from a supervisory authority, by:

(...)

c) standard contractual clauses adopted by the Commission in accordance with...

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with the examination procedure referred to in Article 93, paragraph 2.

(...)"

The standard contractual clauses of Google for the transfer of personal data to the United States, updated on September 27, 2021, under the name "Google Ads & Measurement: Standard Contractual Clauses (Module 3: Processor-to-Processor)", which could be translated as: "Google Ads Data Processing Terms: Standard Contractual Clauses, Processor-to-Processor Standard Contractual Clauses" (hereinafter, SCC). These clauses comply with those published by the European Commission in the Implementing Decision (EU) 2021/915 of the Commission of June 4, 2021, regarding standard contractual clauses between controllers and processors.

In this context, it is important to highlight that the standard contractual clauses are a transfer

instrument in the sense of Chapter V of the Regulation and were not challenged as such by the CJEU in its judgment of July 16, 2020 (C-311/18). However, the CJEU considered that the contractual nature of these clauses implied that they could not be binding on the authorities of third countries. In particular, the CJEU stated that: "...Therefore, while there are situations in which, depending on the legislation and practices in force in the third country in question, the recipient of such transfer is in a position to ensure the necessary protection of the data solely on the basis of standard contractual clauses for data protection, there are others in which the content of such standard clauses may not constitute a sufficient means to ensure, in practice, the effective protection of the personal data transferred to the third country in question. This is particularly the case when the legislation of that third country allows its public authorities to interfere with the rights of the data subjects to whom the data relates" (C-311/18, paragraph 126, emphasis added).

No further analysis of the legal situation in the United States is necessary, as the CJEU has already provided it in its aforementioned judgment. Indeed, the CJEU considered that regulatory surveillance programs such as Section 702 of FISA and E.O. 12333 in conjunction with PPD-28 do not meet the minimum requirements established by Union Law regarding the principle of proportionality, so that surveillance programs based on these provisions cannot be considered limited to what is strictly necessary (C-311/18, paragraph 184). Furthermore, the CJEU found that the legal framework in question did not confer on data subjects rights that could be enforced in court against U.S. authorities, from which it follows that these individuals do not have the right to effective judicial protection (C-311/18, paragraph 192).

The CJEU's analysis is relevant in the present matter, as Google LLC (as the importer of data to the U.S.) must be classified as a provider of electronic communications services in the sense of paragraph (b) of point 4 of Article 1881 of Title 50 of the United States Code and, therefore, is subject to surveillance by U.S. intelligence services in accordance with paragraph (a) of Article 1881 of Title 50 of the United States Code ("FISA 702"). Therefore, Google LLC is obliged to provide personal data to the U.S. government when requested in accordance with paragraph (a) of Article 1881 of Title 50 of the United States Code (FISA 702).

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As can be seen in Google's Transparency Report, Google LLC is regularly subject to such access requests from U.S. intelligence services. The report can be consulted at:

***URL.14.

The CJEU stated, on one hand, that the EU-U.S. adequacy decision was invalid due to the access possibilities of U.S. intelligence services and, on the other hand, concluded that the use of standard contractual clauses cannot, by itself, guarantee a level of protection as required by Article 44 of the GDPR, since the guarantees they offer are not fulfilled when such access requests are made. In fact, the CJEU concluded the following:

"It follows that the standard data protection clauses adopted by the Commission on the basis of Article 46(2)(c) of the GDPR are intended solely to provide contractual guarantees that apply uniformly in all third countries to the controllers and processors established in the European Union and, consequently, regardless of the level of protection guaranteed in each third country. To the extent that these standard data protection clauses cannot, by their very nature, offer guarantees beyond a contractual obligation to ensure compliance with the level of protection required by Union law, they may require, depending on the prevailing situation in a particular third country, the adoption of supplementary measures by the controller to ensure compliance with that level of protection" (C-311/18, paragraph 133).

□

General observations on supplementary measures

In its Recommendations 01/2020, dated June 18, 2021, (which can be consulted on the website

***URL.15, although the transcripts included in this document refer to its translation into Spanish) the European Data Protection Board (EDPB) clarified that when the assessment of the legislation or

practices in force in the third country may affect the effectiveness of the adequate safeguards of the transfer instruments on which the exporter relies, in the context of its specific transfer, as is the case here following the CJEU's assessment, the exporter must suspend the transfer or implement appropriate supplementary measures. The EDPB notes in this regard that "Any supplementary measure can only be considered effective in the sense of the CJEU ruling 'Schrems II' to the extent that it addresses the specific deficiencies identified in its assessment of the legal situation in the third country. If, ultimately, it cannot guarantee a level of protection essentially equivalent, it must not transfer the personal data." (see Recommendations 01/2020, paragraph 75).

Measures to supplement standard data protection clauses can be classified into three categories: contractual, technical, or organizational (see Recommendations 01/2020, paragraph 74).

Regarding contractual measures, the EDPB stated: "In some situations, these measures can complement and reinforce the guarantees that the transfer instrument and the relevant law of the third country can..."

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provide, when, taking into account the circumstances of the transfer, these do not meet all the necessary conditions to ensure a level of protection essentially equivalent to that guaranteed in the Union. Given the nature of contractual measures, which generally cannot bind the authorities of that third country when they are not part of the contract, these must be combined with other technical and organizational measures to provide the required level of data protection (...). (see Recommendations 01/2020, point 99, emphasis added).

As for organizational measures, the EDPB emphasized that: "... Selecting and applying one or more of these measures will not necessarily and systematically ensure that your transfer meets the essential equivalence standard required by Union Law. Depending on the specific circumstances of the transfer and the assessment carried out on the law of the third country, organizational measures will be needed to complement contractual or technical measures, in order to ensure a level of protection of personal data essentially equivalent to that guaranteed in the Union" (see Recommendations 01/2020, point 128, emphasis added).

Regarding technical measures, the EDPB noted that "... These measures will be especially necessary when the legislation of that country imposes obligations on data importers that are contrary to the guarantees of Article 46 of the GDPR and may, in particular, affect the contractual guarantee of an essentially equivalent level of protection against access by public authorities of that third country to such data" (see Recommendations 01/2020, point 77). It added that "The measures listed below aim to ensure that access by public authorities of third countries to the transferred data does not affect the effectiveness of the appropriate guarantees contained in the transfer instruments of Article 46 of the GDPR. These measures apply even if access by public authorities complies with the law of the importing country, when such access goes beyond what is necessary and proportionate in a democratic society. These measures aim to prevent the possible breach of access by preventing authorities from identifying data subjects, inferring information about them, individualizing them in another context, or associating the transferred data with other datasets they may possess, which may contain, among other data, online identifiers provided by the devices, applications, tools, and protocols used by data subjects in other contexts." (see Recommendations 01/2020, point 79, emphasis added).

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Complementary measures implemented by Google LLC

Google LLC, as the recipient of data from users of its Google Analytics services, adopted contractual, organizational, and technical measures to complement the SCC. In the document dated April 9, 2021, sent by Google LLC to the Austrian data protection authority, which it shared with the other authorities within the framework of the TF101 Working Group, Google LLC described the measures adopted in detail.

Taking into account the considerations of the CJEU and the EDPB, it must now be verified whether the

complementary measures adopted by Google LLC were effective, which

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means that they address the specific issue of the access possibilities of U.S. intelligence services. Regarding the "legal and organizational measures" adopted, it should be noted that neither the notification of users, even if such notification is admissible, nor the publication of a transparency report or a "public policy on the handling of government requests" actually prevent or reduce the access possibilities of U.S. intelligence services. Furthermore, it is unclear how the "careful review of each request" by Google LLC regarding its admissibility is effective as a complementary measure, considering that, according to the CJEU, admissible (legal) requests from U.S. intelligence services do not comply with the requirements of European Data Protection legislation.

With respect to the "technical measures" adopted, it should be noted that it has not been clarified how the described measures, such as the protection of communications between Google services, the protection of data in transit between data centers, the protection of communications between users and websites, or "on-site security," actually prevent or reduce the access possibilities of U.S. intelligence services based on the legal framework of the United States.

As for encryption technologies, such as in the case of "data at rest" in data centers, as specifically mentioned by Google LLC as a technical measure, it should be noted that Google LLC, as a data importer, has the obligation to grant access or deliver personal data imported in its possession, including the cryptographic keys necessary for the data to be intelligible (see Recommendations 01/2020, point 81). In other words: as long as Google LLC has the ability to access individuals' data in a clear text, this technical measure cannot be considered effective in the present case.

As Google LLC states that "to the extent that Google Analytics data for measurement transferred by website owners is personal data, it should be considered as pseudonymous," it should be noted that universal unique identifiers (UUIDs) do not fall under the definition of Article 4.5 of the GDPR. While pseudonymization can be a privacy-enhancing technique, unique identifiers have, as previously described, the specific intention of identifying users, not of acting as a safeguard. Aside from this, it has also been previously described why the combination of unique identifiers with other elements (such as browser or device data and IP address) and the possibility of linking such information to a Google account in any case allows for an individual to be identified.

To the extent that Google LLC refers to an "optional technical measure" through an IP anonymization feature, it should be noted, first of all, that this measure is, as its name suggests, optional and not applicable to all transfers. Furthermore, from Google's response, it is not clear whether this anonymization occurs before the transfer or if the full IP address is transmitted to the United States and only shortened after this transfer to the United States.

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United States. Therefore, from a technical standpoint, there is potential access to the entire complete IP address before it is shortened.

Consequently, the supplementary measures adopted, as presented by Google, are not effective to the extent that none of them address the specific issues in the present case, which means that none of them prevent the access possibilities of U.S. intelligence services nor render such accesses ineffective.

□

Exceptions provided in Chapter V of the Regulation

Article 49, "Exceptions for specific situations," of the GDPR states:

"1. In the absence of an adequacy decision in accordance with Article 45, paragraph 3, or of appropriate safeguards in accordance with Article 46, including binding corporate rules, a transfer or a set of transfers of personal data to a third country or international organization may only take place if one of the following conditions is met:

a) the data subject has explicitly consented to the proposed transfer, after being informed of the possible risks to him or her of such transfers due to the absence of an adequacy decision and appropriate safeguards;

b) the transfer is necessary for the performance of a contract between the data subject and the data controller or for the implementation of pre-contractual measures taken at the request of the data subject;

(...)"

The European Data Protection Board (EDPB), in compliance with the objective of ensuring the consistent application of the General Data Protection Regulation, as assigned to it by Article 70 of the GDPR, issued Guidelines 2/2018 on the exceptions contemplated in Article 49 of Regulation 2016/679. Regarding the interpretation of the assumption a) of Article 49 of the GDPR (paragraph 2.1 of Guidelines 2/2018), the EDPB indicates that consent must be specific and informed about the possible risks, stating the following: "this provision requires that data subjects also be informed of the specific risks arising from the fact that their data will be transferred to a country that does not provide an adequate level of protection and that no appropriate safeguards are foreseen for the protection of the data."

In the present case, user consent for the storage of cookies during their visit to the website cannot be considered equivalent to having explicitly consented to the international transfer of data, as required by Article 49.1.a) of the GDPR; this consent must be obtained specifically, and for it to be valid, MAPFRE must have previously informed the data subjects of the risks posed by the data transfers to the U.S., in the absence of an adequacy decision and appropriate safeguards in the sense of Article 49, paragraph 1 of the Regulation.

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Regarding the possible existence of a contractual relationship, this assumption is not present, considering that Recital 111 of the GDPR requires that international data transfers based on explicit consent must be "occasional and necessary in relation to a contract," whereas in this case, the transfers occur continuously and systematically, and their necessity is not justified.

□

Current legal framework

On July 10, 2023, the Commission approved the Implementing Decision (EU) 2023/1795 regarding the adequacy of the level of protection of personal data under the EU-U.S. Data Privacy Framework in accordance with Regulation (EU) 2016/679 of the European Parliament and of the Council, so that international transfers made after this date may be covered by the aforementioned Decision.

On the website <https://www.dataprivacyframework.gov/s/>, it can be verified that Google LLC has certified its adherence to the principles of the Data Privacy Framework until September 13, 2024, due to the need to renew this certification annually. Therefore, currently, international data transfers to Google LLC in the U.S. are covered by the EU-U.S. Data Privacy Framework.

However, it must be concluded that, on the date when the events subject to the complaint occurred, MAPFRE cannot invoke any of the tools provided for in Chapter V of the GDPR to justify the international transfers of personal data of visitors to its website, particularly unique identifiers, IP addresses, browser data, and metadata, to Google LLC in the United States, with the full application of the doctrine established by the Court of Justice of the European Union in the judgment of the Schrems II case, which invalidated the decision on the "EU-U.S. Privacy Shield."

Consequently, in accordance with the evidence available in this resolution of the warning procedure, it is considered that the known facts constitute an infringement attributable to MAPFRE for violation of

Article 44, “General principle for transfers,” of the GDPR, which states that transfers of personal data that are subject to processing or will be processed after their transfer to a third country or international organization may only take place if, subject to the other provisions of the GDPR, the controller and the processor comply with the conditions established in this chapter, including those relating to further transfers of personal data from the third country or international organization to another third country or another international organization.

V

Classification and qualification of the infringement of Article 44 of the GDPR

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The violation of Article 44 of the GDPR constitutes the commission of the infringements classified in Article 83.5 of the GDPR, which under the heading “General conditions for the imposition of administrative fines” provides:

“Violations of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to 4% of the total annual global turnover of the preceding financial year, whichever is higher:

(...)

c) the transfers of personal data to a recipient in a third country or an international organization pursuant to Articles 44 to 49;

(...)”

In this regard, the LOPDGDD, in its Article 71 “Infringements,” establishes that “Acts and conduct referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those contrary to this organic law, constitute infringements.”

For the purposes of the limitation period, Article 72 “Very serious infringements” of the LOPDGDD indicates:

“1. Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following are considered very serious and shall be subject to a limitation period of three years: infringements that constitute a substantial violation of the articles mentioned therein, and in particular, the following:

(...)

l) The international transfer of personal data to a recipient located in a third country or to an international organization, when the guarantees, requirements, or exceptions established in Articles 44 to 49 of Regulation (EU) 2016/679 are not present. (...)”

VI

Warning

Article 64 of the LOPDGDD, which regulates the “Form of initiation of the procedure and duration,” in its third paragraph provides that:

“3. When appropriate, considering the nature of the facts and duly taking into account the criteria established in Article 83.2 of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, the Spanish Data Protection Agency, after hearing the controller or processor, may issue a warning, as well as order the controller or processor to adopt corrective measures aimed at ending the possible non-compliance with data protection legislation in a specific manner and within the specified timeframe.

The procedure shall have a maximum duration of six months from the date of the initiation agreement. After this period, it shall expire, and consequently, the proceedings shall be archived.

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The provisions of the second and third paragraphs of section 2 of this article shall apply in this case." In accordance with the evidence available at this moment of resolution of the procedure, the balance of the circumstances contemplated in Article 83.2 of the GDPR and 76.2 of the LOPDGDD, due to the infringement committed by violating the provisions established in Article 44 of the GDPR, it is appropriate to issue a warning to MAPFRE.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of sanctions whose existence has been established, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ISSUE A WARNING to MAPFRE ESPAÑA COMPAÑÍA DE SEGUROS Y REASEGUROS, S.A., with NIF A28141935, for an infringement of Article 44 of the GDPR, classified under Article 83.5 of the GDPR.

SECOND: TO NOTIFY this resolution to MAPFRE ESPAÑA COMPAÑÍA DE SEGUROS Y REASEGUROS, S.A.

Against this resolution, which concludes the administrative process in accordance with art. 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Court of the National Court, in accordance with the provisions of Article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of art. 90.3 a) of the LPACAP, the firm resolution in the administrative process may be provisionally suspended if the interested party expresses their intention to file an administrative contentious appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in art. 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the administrative contentious appeal. If the Agency is not aware of the filing of the administrative contentious appeal within two months from the day following the notification of this resolution, it would consider the provisional suspension to be concluded.

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Mar España Martí

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